

# Sarvesh Kumar v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Single Judge · 14 November 2025 · Writ-A No. 13096 of 2025 · **Interim stay of SDO suspension; notice issued; listed December 2025.**

## HEADNOTE

Lucknow Bench stayed, until further orders, the 29.10.2025 suspension of a Sub Divisional Officer blamed for delay in granting an electricity connection. The Court noticed admitted Right of Way hindrance—the delay ground in cl. 4.4(e) of the U.P. Electricity Supply Code, 2005 that the licensee is not responsible for—and no complaint of non-cooperation in the enquiry. Notice issued; listed third week of December 2025.

## FACTUAL SUMMARY

The petitioner, a Junior Engineer and Sub Divisional Officer, challenged his 29 October 2025 suspension by the Managing Director, Madhyanchal Vidyut Vitran Nigam Ltd. A complaint alleged delay in releasing an electricity connection and crores of loss. He said his career was unblemished, he had only a supervisory role, and delay was due to Right of Way hindrance, so clause 4.4(e) of the U.P. Electricity Supply Code, 2005 made the licensee not responsible. The department said he had to look after connections under his supervision and was rightly suspended.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::4.4(e)

delay in new connection / right of way / suspension of supervising officer

### HOLDING

Pending consideration of the writ, the Court treated admitted Right of Way hindrance—the ground in cl. 4.4(e) that the licensee is not responsible for such delay—together with the SDO's supervisory role and his cooperation in the enquiry, as sufficient to stay the 29.10.2025 suspension until further orders; merits not decided. ¶ 1

## PRINCIPLE TAGS

**clause-4.4-occupant-connection-on-indemnity-bond** Lucknow Bench stayed, until further orders, the 29.10.2025 suspension of a Sub Divisional Officer blamed for delay in granting an electricity connection. The Court noticed admitted Right of Way hindrance—the delay ground in cl. 4.4(e) of the U.P.. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — MERITS OF THE SUSPENSION AND WHETHER CL. 4.4(E) (ROW DELAY) EXONERATES THE SDO

Writ listed for consideration; disciplinary enquiry ongoing; only interim stay granted. ¶ 1